

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X Index No. _____
CHRISTIAN GOMEZ, Purchased

Plaintiff

- against -

Plaintiff designates Bronx
County as the place of trialThe basis of the venue is
where the tort arose

**CITY OF NEW YORK, DETECTIVE ABDIEL
ANDERSON (SHIELD NUMBER 01249),
UNDERCOVER
POLICE OFFICER NAME UNKNOWN
(SHIELD 240), POLICE OFFICER JOHN DOE # 1,**

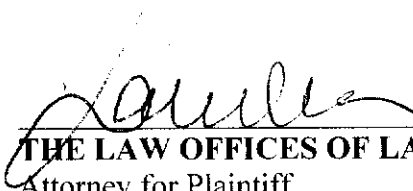
Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BRONX, NY
April 10, 2015


THE LAW OFFICES OF LAURIE E. ROSEN
Attorney for Plaintiff
888 GRAND CONCOURSE, SUITE 1H
BRONX, NY 10451
(718) 618-7516

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

COUNTY CLERK
BRONX COUNTY

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**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

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CHRISTIAN GOMEZ,

Plaintiff,

**Index No.
Verified Complaint**

- against -

**CITY OF NEW YORK, DETECTIVE ABDIEL
ANDERSON (SHIELD NUMBER 01249), UNDERCOVER
POLICE OFFICER NAME UNKNOWN (SHIELD 240),
POLICE OFFICER JOHN DOE # 1,
Defendants.**

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Plaintiff CHRISTIAN GOMEZ, by his attorneys THE LAW OFFICES OF LAURIE E. ROSEN, by LAURIE E. ROSEN, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff CHRISTIAN GOMEZ was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY") was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT ("POLICE") was and is an agency of defendant CITY.

4. At all times hereinafter mentioned, defendants DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER POLICE OFFICER NAME UNKNOWN (SHIELD 240) and POLICE OFFICER JOHN DOE # 1 are police officers employed by Defendants.

BACKGROUND

5. On September 9, 2013, at approximately 7:00 p.m., on the corner of Ogden Avenue and West 170th Street, in Bronx County, State of New York, without just cause or provocation, DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER OFFICER NAME UNKNOWN (SHIELD 240) and POLICE OFFICER JOHN DOE # 1, police officers with THE NEW YORK CITY POLICE DEPARTMENT, approached Plaintiff and handcuffed Plaintiff.
6. Immediately thereafter, Defendants, including DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER OFFICER NAME UNKNOWN (SHIELD 240) and POLICE OFFICER JOHN DOE # 1 intentionally placed Plaintiff under arrest for the crime of Criminal Sale of Marijuana without just cause or provocation and with reckless and negligent disregard for the truth.
7. After unlawfully searching and arresting Plaintiff, Defendants removed Plaintiff to the 44TH Police Precinct where Plaintiff was forced to remain in a precinct holding cell.
8. Next, POLICE shackled Plaintiff to other prisoners and drove Plaintiff to Bronx Central Booking. Plaintiff remained incarcerated until Plaintiff's release from custody at approximately 12:00 a.m. on September 10, 2013.

9. On January 16, 2014, the Bronx County District Attorney declined to prosecute Plaintiff for any crime or offense.

PROCEDURAL POSTURE

10. On December 2, 2014, Plaintiff served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
11. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
12. A 50-H hearing has been held.
13. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
14. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CLAIM: §1983 - FALSE ARREST

15. Pursuant to Rule 10(c), Plaintiffs repeat and re-allege each and every allegation of paragraphs 1 through 14 of the Complaint as if incorporated and reiterated herein.
16. By falsely accusing Plaintiff without legal authority and falsely swearing in support of these allegations, Defendants DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER OFFICER NAME UNKNOWN (SHILED 240) and POLICE OFFICER JOHN DOE # 1 caused the arrest of Plaintiffs and violated Plaintiffs' rights under the

First, Fourth, Eighth and Fourteenth Amendments of the United States Constitution

17. By arresting Plaintiffs without legal authority, Defendants DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER OFFICER NAME UNKNOWN (SHILED 240) and POLICE OFFICER JOHN DOE # 1 violated Plaintiffs' rights under the First, Fourth, Eighth and Fourteenth Amendments of the United States Constitution.

18. By reason thereof, Defendants DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER OFFICER NAME UNKNOWN (SHILED 240) and POLICE OFFICER JOHN DOE # 1 violated 42 U.S.C. §1983 and 42 United States Code §1988, and caused Plaintiff to suffer emotional distress, mental anguish, economic damages and the loss of his constitutional rights.

SECOND CLAIM: ABUSE OF PROCESS

19. Paragraphs 1-18 are incorporated by reference as though fully set forth herein.

20. In arresting Plaintiff, DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER OFFICER NAME UNKNOWN (SHILED 240) and POLICE OFFICER JOHN DOE # 1, police officers acting in their capacity as agents, servants and employees of the Defendant, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

21. In arresting Plaintiff, DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER OFFICER NAME UNKNOWN (SHILED 240) and POLICE OFFICER JOHN DOE # 1 sought either a detriment to Plaintiff or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

22. As a result of the abuse of process by the defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

23. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

24. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

THIRD CLAIM: MALICIOUS PROSECUTION

25. Paragraphs 1-24 are incorporated by reference as though fully set forth herein.

26. Upon information and belief, on or about September 9, 2013, and from that time until dismissal of the charges on or about January 16, 2014, by the Honorable Judge presiding at Bronx Supreme Court, Criminal Term, DETECTIVE ABDIEL ANDERSON (SHIELD NUMBER 01249), UNDERCOVER OFFICER NAME UNKNOWN (SHILED 240) and

POLICE OFFICER JOHN DOE # 1, who were at the scene and in charge of the arrest under Docket Number 2013BX052462 and Arrest Number 662778, deliberately and maliciously prosecuted plaintiff, Christian Gomez, an innocent man, without any probable cause whatsoever by filing or causing a Criminal Court Complaint to be filed in the Criminal Court of the City of New York, Bronx County for the purpose of falsely accusing the plaintiff of violations of the Penal Law of the Sate of New York.

27. The defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the plaintiff and instead, maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the plaintiff.

28. The commencement of these criminal proceedings under Docket Number 2013BX052462 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the defendants.

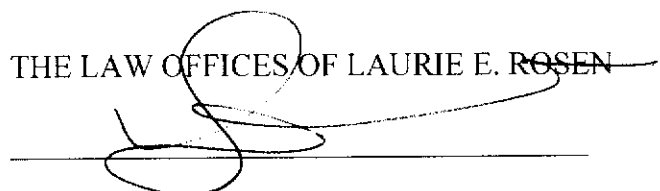
29. As a result, of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The plaintiff made multiple court appearances to defend his liberty against these unjust charges.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: BRONX, NY

April 10, 2015

THE LAW OFFICES OF LAURIE E. ROSEN



BY: LAURIE E. ROSEN, ESQ.

Attorney for Plaintiff

888 GRAND CONCOURSE, SUITE 1H

BRONX, NY 10451

(718) 618-7516

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

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Index No.

CHRISTIAN GOMEZ,

Purchased: _____

Plaintiff

-against-

**CITY OF NEW YORK, DETECTIVE ABDIEL
ANDERSON (SHIELD NUMBER 01249),
UNDERCOVER POLICE OFFICER NAME
UNKNOWN (SHIELD 240), POLICE OFFICER
JOHN DOE # 1,**

Defendants

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I, **LAURIE E. ROSEN**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains her office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: BRONX, NY
April 10, 2015

LAURIE E. ROSEN